

3.

CASE #	CASE NAME	HEARING NAME
CVPS2406358	GARCIA MARTINEZ vs TOYOTA MOTOR SALES, U.S.A., INC., A CALIFORNIA CORPORATION	MOTION TO COMPEL

Tentative Ruling:

Matter to be taken under submission

4.

CASE #	CASE NAME	HEARING NAME
CVRI2401589	VELASCO vs HYUNDAI MOTOR AMERICA	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court Overrules Plaintiffs' Evidentiary Objection Nos. 1-3 as to the Declaration of Soheyl Tahsildoost.

The Court Overrule Plaintiffs' Evidentiary Objection No. 1 as to the Declaration of Donna Hooper.

The Court Sustains Plaintiffs' Evidentiary Objection No. 2 as to Exhibit N attached to the Declaration of Donna Hooper.

The Court Grants Plaintiffs' motion for attorney fees and costs at the reduced amount of \$14,031.50 (\$11,435.00 attorney fees + \$2,596.50 costs).

Factual / Procedural Context:

This Song-Beverly action arises out of Plaintiffs Nicanor Velasco and Andres Alzate Gonzalez' ("Plaintiffs") purchase of a new 2023 Hyundai Tucson ("Vehicle"), which was sold with a warranty issued by Defendant Hyundai Motor America ("Defendant"). Plaintiffs alleged that after its purchase, the Vehicle exhibited numerous serious defects and nonconformities to warranty.

Accordingly, on March 22, 2024, Plaintiffs filed a Complaint against Defendant, asserting causes of action for: (1) Violation of Song-Beverly Act – Breach of Express